

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
HON. Temporary Judge Catherine Evans

Date: 1/7/2026

Court Room Rules and Notices

#	Case Name	Tentative
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4	Klein – Trust 30-2024-01447902	<i>Klein – Trust (2024-01447902)</i> Motion to Quash Respondent Hope Carreon’s Motion to Quash and accompanying request for sanctions (ROA 84) is DENIED. Pursuant to Code of Civil Procedure sections 1987.1 and 1987.2, Respondent moves to quash Petitioner Christine Klein’s subpoena directed to Fidelity Investments on the ground the subpoena is overbroad, seeks documents that are not relevant, violates decedent’s right to privacy, violates the trust’s right to privacy, and imposes an undue burden on the responding party. Respondent asks for sanctions of \$4,230 in connection with the motion. As an initial matter, Respondent failed to provide the court with a copy of the subpoena she seeks to quash. The court, therefore, cannot determine whether the subpoena is overbroad, seeks documents which are irrelevant or protected by the constitutional right to privacy, or unduly burdensome. For that reason alone, the motion could be denied. Further, as set forth below, even in the abstract, Respondent’s arguments do not support an order quashing the subpoena. Respondent argues the subpoena is overbroad and seeks documents that are not relevant because it references the William John Klein Living Trust dated September 1, 2004 (the “Trust”) rather than the allegedly operative trust entitled the Fifth Amended and Restated Declaration of Trust of the William John Klein Trust executed July 25, 2024. Respondent also argues the subpoena is overbroad because it is not limited to documents relating to the first amendment to the Trust, which Respondent identifies as the only issue

	raised in the petition. The allegations of the Petition in this matter are not limited to the first amendment, however. Respondent also argues the subpoena should be quashed as overbroad and seeking irrelevant documents because it asks for financial records created during William John Klein's ("Decedent") lifetime when no fiduciary duties were owed to the beneficiaries. As set forth above, Respondent failed to provide the court with a copy of the subpoena, so it is impossible to determine the true nature of Respondent's arguments. However, Respondent offers neither statute or case limiting a beneficiary petitioner from discovery regarding events during a trustor's lifetime, presumably because there is none. The scope of discovery is very broad. As the California Supreme Court explained in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 541: "Section 2017.010 and other statutes governing discovery 'must be construed liberally in favor of disclosure unless the request is clearly improper by virtue of well-established causes for denial.' [Citation.] This means that 'disclosure is a matter of right unless statutory or public policy considerations clearly prohibit it.'" "Any doubts regarding relevance are generally resolved in favor of allowing the discovery." (<i>Mercury Interactive Cop. v. Klein</i> (2007) 158 Cal.App.4th 60, 98.) As described by Respondent, the requested documents do not fall outside the scope of discovery. Respondent argues the subpoena should be quashed because it seeks documents protected by the constitutional right of privacy belonging to Decedent and Fidelity Investments. The constitutional right of privacy is accorded only to individuals. (Cal. Constitution, Art. 1, §§ 1 and 1.1.) Accordingly, no constitutional right of privacy belonging to Fidelity Investments supports the motion. As for Decedent, his constitutional right to privacy ceased with his death. (<i>Hendrickson v. California Newspapers, Inc.</i> (1975) 48 Cal.App.3d 59, 62 ["It is well settled that the right of privacy is purely a personal one; it cannot be asserted by anyone other than the person whose privacy has been invaded. . . Further, the right does not survive but dies with the person."].) (In support of her assertion that decedent's right of privacy survives his death, Respondent cites <i>Wells Fargo Bank v. Superior Court</i> (2000) 22 Cal.4th 201, <i>Estate of Kime</i> (1983) 144 Cal.App.3d 246, and <i>Board of Trustees v. Superior Court</i> (1981) 119 Cal.App.3d 516, 525-526. None of the three cases addresses whether the constitutional right of privacy survives death.) No privacy rights support the motion to quash. Finally, Respondent argues the subpoena is unduly burdensome. An "objection based upon burden must be sustained by evidence showing the quantum of work required." (<i>Williams v. Superior Court</i> 2017) 3 Cal.5th 531,
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		549, citing <i>West Pico Furniture Co. v. Superior Court</i> (1961) 56 Cal.2d 407, 417.) Respondent, who is neither the holder of the subpoenaed documents nor the one who will be responding to the subpoena, makes no such showing. The motion is DENIED. Petitioner is directed to give notice.
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